

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BASSIROU DIAW,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. ANDREW OLIVE, NYPD Shield 22297,
P.O. STEVEN PEREZ NYPD Shield 23485,
DET. JOHN DOE #1 NYPD (True Name Unknown),
DET. JOHN DOE #2 NYPD (True Name Unknown),

Defendants
-----X

Index No.:

Date Purchased:12/03/2021

SUMMONS

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
Situs of Torts

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Eastchester, New York
December 3, 2021



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff BASSIROU DIAW
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263
Our File No. 4198

TO: New York City Law Department
Attorneys for Defendants THE CITY OF NEW YORK
100 Church Street
New York, NY 10007 Claims #2021PI013980 & #2021PI011188

P.O. ANDREW OLIVE, NYPD Shield #22297
NYPD 48th Precinct

P.O. STEVEN PEREZ Shield #23485
NYPD 48th Precinct

DET. JOHN DOE #1 (True Name Unknown)
NYPD

DET. JOHN DOE #2 (True Name Unknown)
NYPD

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 12/03/2021

-----X
BASSIROU DIAW,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
P.O. ANDREW OLIVE, NYPD Shield 22297,
P.O. STEVEN PEREZ NYPD Shield 23485,
DET. JOHN DOE #1 NYPD (True Name Unknown),
DET. JOHN DOE #2 NYPD (True Name Unknown),

Defendants
-----X

Plaintiff BASSIROU DIAW, by his attorneys CASCIONE, PURCIGLIOTTI &
GALLUZZI, P.C., complaining of the Defendants respectfully alleges, upon information and
belief:

1. That at the time of the commencement of this action, Plaintiff BASSIROU DIAW resided
in the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State of New
York.
3. That at all times herein mentioned, Defendant THE CITY OF NEW YORK was, and still
is, a municipal corporation.
4. At all times relevant and material herein, the defendant, P.O. ANDREW OLIVE, NYPD
Shield 017689 and the defendant P.O. STEVEN PEREZ NYPD Shield 23485 were
members of the New York City Police Department and employees of Defendant, THE
CITY OF NEW YORK.

5. At all times relevant and material herein, the defendant, DET. JOHN DOE #1, NYPD (True name not known) and the defendant DET. JOHN DOE #2, NYPD (True name not known) were members of the New York City Police Department and employees of Defendant, THE CITY OF NEW YORK.
6. That on or before June 21 2021, pursuant to an order of this court and therefore within the time prescribed by law, a sworn Notice of Claim pertaining to the incident of January 5, 2021, stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was deemed filed Nunc Pro Tunc and thereby served on the Plaintiff's behalf on the Comptroller for the City of New York and assigned claim number 2021PI013980 and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
7. That on or before April 14, 2021 and within the time prescribed by law, a sworn Notice of Claim pertaining to the incident of April 8, 2021, stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and assigned claim #2021PI011188 and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That thereafter a hearing on claim 2021PI013980 pursuant to General Municipal Law 50(h) was held on August 24, 2021 and a hearing on claim #2021PI011188 pursuant to General Municipal Law 50(h) was held on December 3, 2021.
9. That this action is being commenced within one year and ninety days after accrual of these causes of action, or within the time allowed by law.
10. At approximately 11:00 p.m. on January 5, 2021 in the vicinity of 512 East 180th Street in the County of the Bronx while plaintiff BASSIROU DIAW was lawful seated in the rear of a parked vehicle, defendants P.O. OLIVE, and P.O. PEREZ in their capacity as officers of the NYPD, took him out of the vehicle, searched the trunk of said vehicle, violently handcuffed him and conducted a warrantless arrest without probable cause
11. During a warrantless search of the locked trunk of the parked vehicle plaintiff was a passenger in, P.O. OLIVE and P.O. PEREZ allege that they found a loaded pistol.
12. Plaintiff did not own said vehicle, was not the driver of said vehicle, did not have access to its locked trunk and had no connection whatsoever to any weapon found therein.
13. New York law does not have any provision allowing a passenger to be charged with constructive possession of a weapon in a locked automobile trunk barring other evidence connecting said passenger to the weapon, of which there was none in this case.
14. Plaintiff BASSIROU DIAW was taken into custody and was later transported to Central Booking. Plaintiff was charged with Criminal Possession of a Weapon and related charges.
15. On January 6, 2021 Plaintiff BASSIROU DIAW was arraigned and was released but was required to return to court until all criminal charges were dismissed in Bronx Criminal Court on May 6, 2021.

16. At some time on or before April 8, 2021, DET. JOHN DOE 1 and DET JOHN DOE 2 were investigating an alleged homicide which had occurred withing the confines of the 42nd Precinct in the Bronx.
17. At some time on or before April 8, 2021, DET. JOHN DOE 1 and/or DET JOHN DOE 2, without reasonable suspicion or probable cause, filed a wanted card or other notice to law enforcement agencies naming plaintiff DIAW as a suspect in the homicide they were investigating.
18. At approximately 9 in the morning on April 8, 2021, plaintiff DIAW was attempting to board an airplane at JFK airport when he was detained by TSA Officers based upon the wanted card or other notification filed by DET. JOHN DOE 1 and/or DET JOHN DOE 2.
19. On April 8, 2021 officers of the NYPD took custody of plaintiff DIAW from TSA and returned him to the 42nd Precinct where he was detained and interrogated.
20. Upon information and belief on April 8, 2021 DET. JOHN DOE 1 and/or DET JOHN DOE 2, without reasonable suspicion or probable cause, applied for a search warrant for plaintiff DIAW's home at 1571 Fulton Avenue in the Bronx.
21. On information and belief on April 8, 2021 when DET. JOHN DOE 1 and/or DET JOHN DOE 2, applied for a search warrant for plaintiff DIAW's home at 1571 Fulton Avenue in the Bronx they made material misrepresentations to the court in order to obtain said warrant.
22. On April 8, 2021 DET. JOHN DOE 1 and/or DET JOHN DOE 2, along with other officers of the NYPD, executed the search at plaintiff DIAW's home at 1571 Fulton Avenue in the

Bronx thereby causing psychological distress to plaintiff's family and harm to plaintiff's reputation with his neighbors.

23. Plaintiff DIAW had an alibi confirmed by surveillance video which clearly placed him elsewhere at the time of the homicide in question rendering it impossible for him to have been the perpetrator. After several hours he was released from the 42nd Precinct having never been charged.
24. Upon information and belief, a suspect was eventually arrested for the homicide being investigated and said individual had no resemblance to or connection with, plaintiff DIAW.
25. Upon information and belief, the earlier false arrest of January 5, 2021 was a factor in causing him to be mistakenly identified as a perpetrator or person of interest in the subsequent homicide investigation.

AS AND FOR A FIRST CAUSE OF ACTION RELATING TO JANUARY 5,2021
(FALSE ARREST and WRONGFUL IMPRISONMENT)

26. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "25" with the same force and effect as if more fully set forth at length herewith.
27. Due to the actions of defendants OLIVE and PEREZ together with other employees of defendant CITY OF NEW YORK plaintiff was caused to be detained, searched, arrested, imprisoned and held on false charges.
28. The detention, search and arrest of plaintiff was unjustified and was not caused by any

action on his part. The arrest and subsequent imprisonment of plaintiff was without probable cause and was legally unjustifiable.

29. Because of the above stated false arrest and wrongful imprisonment plaintiff suffered damage to his personal reputation and was otherwise financially damaged and plaintiff was caused to have suffered emotional pain, suffering and humiliation.

30. That as a result of the foregoing false arrest and wrongful imprisonment, search and seizure, plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION-MALICIOUS PROSECUTION

31. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "30" with the same force and effect as if more fully set forth at length herewith.

32. That from on or about January 5, 2021 until May 16, 2021, defendants OLIVE and PEREZ together with other employees of defendant CITY OF NEW YORK deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.

33. On May 16, 2021, in Bronx Criminal Court all charges against plaintiff BASSIROU DIAW were dismissed on the merits.

34. That as a result of the foregoing malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A THIRD CAUSE OF ACTION RELATING TO April 8, 2021 (FALSE ARREST and WRONGFUL IMPRISONMENT)

35. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "34" with the same force and effect as if more fully set forth at length herewith.

36. Due to the actions of defendants JOHN DOE 1 & 2 together with other employees of defendant CITY OF NEW YORK plaintiff was caused to be detained, searched, arrested, imprisoned and held on false suspicion.

37. The detention, search and arrest of plaintiff on April 8, 2021 was unjustified and was not caused by any action on his part. The arrest and detention of plaintiff was without probable cause and was legally unjustifiable.

38. Because of the above stated false arrest and wrongful imprisonment plaintiff suffered damage to his personal reputation and was otherwise financially damaged and plaintiff was caused to have suffered emotional pain, suffering and humiliation.

39. That as a result of the foregoing false arrest and wrongful imprisonment, search and seizure, plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATIONS OF CIVIL RIGHTS PURSUANT TO *42 USCA §1983*

40. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "39" with the same force and effect as if more fully set forth at length herewith.
41. The search, seizure, arrest, and detention of the plaintiff on January 5, 2021 by the Defendants, CITY OF NEW YORK and OLIVE and PEREZ JOHN DOE's 1-4 was under color of state law, statute, ordinance, regulation, custom, or usage as the agents and employees of the NYPD of Defendant CITY OF NEW YORK in violation of plaintiff infant's rights under *42 USCA §1983* as well as the United States Constitution.
42. The search, seizure, arrest, and detention of the plaintiff on April 8, 2021 by the Defendants, CITY OF NEW YORK and JOHN DOE's 1 & 2 was under color of state law, statute, ordinance, regulation, custom, or usage as the agents and employees of the NYPD of Defendant CITY OF NEW YORK in violation of plaintiff infant's rights under *42 USCA §1983* as well as the United States Constitution.
43. The actions taken by defendants OLIVE, PEREZ and JOHN DOEs 1 & 2 and their fellow officers were part of a policy and practice of the defendant CITY OF NEW YORK while policing in Bronx County, New York.
44. The above described incidents between the plaintiff and members of the New York City Police Department were caused in whole or in part by the improper policy and procedures

of the NYPD.

45. Plaintiff, as an African American male, is part of an identified protected class of individuals who have been disproportionately affected by the improper policy and procedures of the NYPD.
46. Because of the above stated premises, Plaintiff was caused to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a further result of said conduct Plaintiff has been caused to suffer genuine injury and pecuniary losses.
47. That as a result of the foregoing violation of his Civil Rights, Plaintiff is entitled to the costs and attorney's fees of prosecuting this action and as a result of the foregoing violations of Civil Rights, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR CONSPIRACY to COMMIT VIOLATIONS OF CIVIL RIGHTS PURSUANT TO 42 USCA §1985

48. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "47" with the same force and effect as if more fully set forth at length herewith.
49. The searches, seizures, arrests and detentions of the plaintiff by the Defendants, OLIVE, PEREZ and JOHN DOES 1 & 2 were effected by conspiracy involving various members of the NYPD to violate plaintiff's rights under 42 USCA §1985 as well as the United

States Constitution.

50. Because of the above stated conspiracy, Plaintiff was caused to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a further result of said conduct Plaintiff has been caused to suffer genuine injury and pecuniary losses.

51. That as a result of the foregoing conspiracy to commit violations of his Civil Rights, Plaintiff is entitled to the costs and attorney's fees of prosecuting this action and as a result of the foregoing violations of Civil Rights, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts.

As and for a Claim for Punitive Damages

52. Plaintiff repeats and re-alleges the allegations set forth in paragraphs "1" through "51" with the same force and effect as if more fully set forth at length herewith.

53. That as a result of the foregoing intentional and malicious violations of his State and Federal Civil Rights, Plaintiff is entitled to punitive damages in an amount to be assessed at trial against individual defendants OLIVE, PEREZ and JOHN DOEs 1 & 2.

WHEREFORE, Plaintiff demands judgment against the Defendants upon the causes of action set forth above, jointly and severally, in an amount to be determined by the trier of fact; together with the costs and disbursements of this action and punitive damages.

Dated: Eastchester, New York
December 3, 2021

Thomas G. Cascione
(Thomas.cascione@cpglawyers.com)
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff BASSIROU DIAW
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(914) 961-1263

ATTORNEY'S VERIFICATION

THOMAS G. CASCIONE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C., attorneys of record for Plaintiff, BASSIROU DIAW. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: Eastchester, New York
December 3, 2021


THOMAS G. CASCIONE